

SENATE BILL 2212

By Taylor

AN ACT to amend Tennessee Code Annotated, Title 4, Chapter 24; Title 7, Chapter 51, Part 2; Title 38, Chapter 8 and Title 68, Chapter 140, relative to compensation for emergency responder deaths in the line of duty.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 7-51-210(c), is amended by deleting the subsection and substituting:

(c) A claim for payment of an annuity pursuant to this section must be filed with the department of finance and administration no later than three (3) years after the later of the following:

(1) The date of death of the decedent; or

(2) The date of a final order or other determination designating the decedent's death as being in the line of duty that is issued by a court, administrative law judge, or other state or local government official, entity, or body with the authority to issue such order or determination.

SECTION 2. Tennessee Code Annotated, Section 7-51-210(e), is amended by deleting the subsection and substituting:

(e)

(1) A denial of a claim made under this section by the estate of a law enforcement officer is subject to review by the Tennessee peace officer standards and training commission within one (1) year of the date of the denial. The commission has the authority to review the claim and issue a final order or other determination which is binding upon this state. The commission shall

cause copies of the final order or determination to be delivered to the claimant's estate and the department of finance and administration.

(2) A denial of a claim made under this section by the estate of a firefighter or volunteer rescue squad worker is subject to review by the commission on firefighting personnel standards and education within one (1) year of the date of the denial. The commission has the authority to review the claim and issue a final order or other determination which is binding upon this state. The commission shall cause copies of the final order or determination to be delivered to the claimant's estate and the department of finance and administration. The commissioner shall not participate in the commission's review of a denied claim; except, that the commissioner may offer testimony regarding the commissioner's reasons for denying the claim, if requested by the commission.

(3) A denial of a claim made under this section by the estate of an emergency medical technician is subject to review by the Tennessee emergency medical services board within one (1) year of the date of the denial. The board has the authority to review the claim and issue a final order or other determination which is binding upon this state. The board shall cause copies of the final order or determination to be delivered to the claimant's estate and the department of finance and administration.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it, and unless prohibited by the United States Constitution or Tennessee Constitution, is retroactive to March 1, 2020.